

		and the workplace environment in which the alleged adverse employment actions occurred. Construing the allegations liberally at the pleading stage, the challenged allegations are not improper or irrelevant. Accordingly, the motion to strike is DENIED. Plaintiff is reminded that California Rules of Court, rule 3.1113(d), limits opposition memoranda to 15 pages absent prior court approval. Plaintiff's opposition memoranda (ROA Nos. 87, 89) exceed that permissible page limit. Defendants to give notice.
52	Patel vs. Brahmbhatt 21-01188360	Motion to Seal The Motion to Seal brought by Defendants Sunil A. Brahmbhatt, Keven Brahmbhatt and Natasha Brahmbhatt, is DENIED. “The public has a First Amendment right of access to civil litigation documents filed in court and used at trial or submitted as a basis for adjudication.” (<i>Savaglio v. Wal-Mart Stores, Inc.</i> (2007) 149 Cal.App.4th 588, 596-597.) In line with the above, “[u]nless confidentiality is required by law, court records are presumed to be open.” (Cal. Rules of Court rule 2.550(c).) Firstly, in seeking to seal “the entire court file,” Defendants have necessarily failed to narrowly tailor their request, as required by California Rules of Court rule 2.550(d). Within the body of the motion, Defendants briefly state “[t]he Documents which are sought to be sealed as a part of the file are the Complaint and First Amended Complaint with all its Exhibits (25)...” (Motion: 3: 25-27.) While this statement gives the impression of narrowing, the referenced Complaint and First Amended Complaint, along with their Exhibits, total 619 pages. (ROA Nos. 2 and 87.) Likewise, while Defendants assert that “sensitive financial information relating to the Defendant entities and Plaintiffs investment” are included somewhere within those 619 pages, the same is insufficient to allow a narrowly tailored order which complies with California Rules of Court rule 2.550(e)(1). Of note, “trial courts can, and should, view overly inclusive sealing efforts with a jaundiced eye, and impose sanctions as appropriate.” (<i>Overstock.com, Inc. v. Goldman Sachs Group, Inc.</i> (2014) 231 Cal.App.4th 471, 500.) In addition to the above, while Defendants offer declarations which state they have been negatively affected by certain allegations and filings being public, the declarations do not contain “facts sufficient to justify the sealing” of the entire record. (Cal. Rules of Court rule 2.551(b)(1).) “[A]t a minimum...the party seeking to seal documents, or maintain them under seal, must come forward with a specific enumeration of the facts sought to be withheld and specific reasons for withholding them.” (<i>H.B. Fuller Co. v. Doe</i> (2007) 151 Cal.App.4th 879, 894.)

		Within the motion, Defendants assert sealing is necessary to protect the reputation of a licensed attorney from “fabricated and totally false” allegations, stating: “Courts recognize the serious harm caused by publishing unverified accusations of misconduct against a licensed attorney. See <i>Burkle</i>, 135 Cal.App.4th at 1052-1053.” (Motion: 4:15-18.) However, the citation to <i>In re Marriage Burkle</i> (2006) 135 Cal.App.4th 1045, is wholly unavailing to the point to which it is attached: The cited portion of <i>Burkle</i>, concluded that former Family Code section 2024.6, which <i>mandated</i> the sealing of information concerning assets and liabilities in divorce proceedings, unconstitutionally violated the First Amendment right of public access to court records. (<i>Id.</i> at pp. 1052-1053.) Thus, while Defendants declare they have been injured by malicious and false allegations, they offer no authority which supports sealing documents solely based on reputational damage. Thereafter, Defendants generally cite <i>Universal City Studios, Inc. v. Superior Court</i> (2003) 110 Cal.App.4th 1273, asserting it stands for the proposition that “sealing [is] appropriate to prevent business harm.” (Motion: 4:28.) However, Defendants have <i>not</i> identified any “financial information” or confidential business operations, which have been publicly filed, that would fall within the above holding. (<i>Universal City Studios, Inc. v. Superior Court</i> (2003) 110 Cal.App.4th 1273, 1286.) At best, Defendants declare in a conclusory fashion, that the record contains “sensitive financial information relating to the Defendant entities and Plaintiffs investment.” (§4 of Sunil Brahmhatt Declaration.) Indeed, if anything, Defendants assert the information sought to be sealed is <i>false</i>, and consequently, cannot reveal the actual business operations of Defendants. (See §14 and §21 of Sunil Brahmhatt Declaration; See also §5 of Keven Brahmhatt Declaration.) In addition to the above, the citation to <i>Universal</i> brings to light a question of timeliness: The <i>Universal</i> Court proceeded to deny the request to seal therein, as the financial data at issue had been publicly filed in another action: “In the absence of any evidence of inadvertence or mistake, we are satisfied that defendant’s own voluntary disclosure of the financial data in an unsealed document it filed in superior court where the information has been available for public review for over one year substantially outweighs the confidentiality interests identified....” (<i>Universal City Studios, Inc. v. Superior Court</i> (2003) 110 Cal.App.4th 1273, 1286.) Like the circumstances in <i>Universal</i>, the record of this action includes filings by Defendants, that have been public, in some cases, for over 5 years. In <i>Savaglio v. Wal-Mart Stores, Inc.</i> (2007) 149 Cal.App.4th 588, the Court held the failure to follow sealing procedures, when documents have been publicly available, is conduct “so inconsistent with an intent to enforce its rights to obtain sealed records under the Rules of Court as to induce a reasonable belief [the party has] relinquished such right.” (<i>Id.</i> at p. 599-601.) The Court also held that “irrespective of the waiver, the trial court lacked discretion to entertain a belated motion to seal.” (<i>Id.</i> at p. 601.) Defendants have offered no explanation as to how this motion, which seeks to seal documents publicly filed as early as March 9, 2021, is timely.
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		Next, the motion states: “Exhibits ‘A’ to ‘Y’ are the investment agreements which contain a confidentiality clause and include private financial investment information typically sealed by courts.” (Motion: 5:2-4.) The motion does not identify these documents more specifically; however, they are presumably exhibits to the Complaint. Regardless, as stated above, the “private financial investment information” is not specifically identified. In support of this portion of the motion, Defendants cite only <i>Huffy Corp. v. Superior Court</i> (2003) 112 Cal.App.4th 97, wherein the Court <i>declined</i> to seal a settlement agreement with a confidentiality clause. <i>Huffy</i> reaffirmed that “a settlement agreement which had a confidentiality provision could not be sealed unless there was a showing of serious injury which would result from public disclosure.” (<i>Huffy Corp. v. Superior Court</i> (2003) 112 Cal.App.4th 97, 106.) Similarly, no such showing has been made herein. Lastly, while Defendants <i>briefly</i> cite authority which discusses sealing trade secrets (See ¶18 of Sunil Brahmbhatt Declaration, citing <i>In re Providian Credit Card Cases</i> (2002) 96 Cal.App.4th 292, 298-299), Defendants have not identified any trade secrets, included within any filing. Based on all the above, the motion is DENIED.
53	Auto Finance Solutions, LLC vs. Citicars 24-01439282	Motion for Leave to File Amended Complaint Plaintiff Auto Finance Solutions, LLC’s motion for leave to file a Second Amended Complaint is GRANTED. The Civil Procedure Code provides that “[t]he court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code. (Code Civ. Proc., § 473, subd. (a)(1).) The case law is clear that leave to amend should be granted liberally at all stages of the proceedings in order to accomplish substantial justice for both parties and to resolve cases on their merits. (See <i>Hirsa v. Superior Court</i> (1981) 118 Cal.App.3d 486, 488-489; <i>IMO Development Corp. v. Dow Corning</i> (1982) 135 Cal.App.3d 451, 461.) “If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend” (<i>Morgan v. Superior Court</i> (1959) 172 Cal.App.2d 527, 530 [citations and quotations omitted].) Plaintiff has sufficiently complied with the procedural requirements for a motion for leave to amend. (Sadana Decl. ¶¶ 5-7,10, Exhs. 1-2.) No opposition was filed and no prejudice was identified from the filing of the proposed Second Amended Complaint. Plaintiff’s motion is granted. Plaintiff is ordered to file and serve the Second Amended Complaint attached as Exhibit 1 to the Declaration of Kavita Sadana by May 22, 2026. Plaintiff to give notice of this ruling.